

Plaintiff attempts to rely on the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to defeat the motion. There, the manufacturer (Ford) was not a party to the dealers' sales contracts, and plaintiffs did not expressly agree to arbitrate any dispute with Ford. Therefore, Ford could not invoke those contracts' arbitration provisions as an unnamed third party. (*Id.* at 1128, 1133-36.) Here, by contrast, Moss Bros is a party to the lease agreement and invokes its own arbitration clause as to the sole claim (negligent repair) pled against it. The arbitration clause covers any claim between Plaintiff and Moss Bros relating to the vehicle or arising from an alleged tort. (Marquis Decl., Ex. A, p. 6, § 27.) Accordingly, the claim against Moss Bros falls within the parties' agreement to arbitrate. The court grants Moss Bros' motion as to Plaintiff's 5th cause of action for negligent repair.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

No opposition filed. Motion Granted. Prevailing party to prepare order.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

No opposition filed. Motion granted. Prevailing party to prepare order.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2604533	POWERTOWN SOLAR ELECTRIC, INC. vs COMPLETE SOLAR, INC.	PETITION RE: ARBITRATION AWARD

Tentative Ruling:

No opposition filed. Petition granted. Proposed order to be signed at the hearing.